

		dispute or claim arising between them out of this Agreement, or any resulting transaction, before resorting to court action.” (Ex. 1, p. 5.) Agreements to attend nonbinding mediation prior to filing suit are generally enforceable in California. (See, e.g., <i>The McCaffrey Group, Inc. v. Superior Court</i> (2014) 224 Cal.App.4th 1330, 1349-1351; <i>Bowers v. Raymond J. Lucia Companies, Inc.</i> (2012) 206 Cal.App.4th 724, 733.) Here, Plaintiff’s complaint arises out of the subject lease agreement which requires the parties to attend mediation before resorting to litigation. Plaintiff has not opposed the motion. Therefore, the motion is granted. The CMC is vacated and the Court sets an OSC re: Mediation for 10/30/2026.
6.	SHEEHAN VS. SHEEHAN 2024-01414691	1. MOTION FOR ATTORNEY FEES Plaintiff Colleen Sheehan’s Motion for Attorney’s Fees is DENIED. First, Plaintiff’s request for attorney’s fees for her corporation are improper. Plaintiff cannot request fees for another party and a corporation’s attorney is not the personal representative of the corporation’s shareholders. (See <i>Sprengel v. Zbylut</i> (2019) 40 Cal.App.5th 1028, 1042.) Thus, Plaintiff’s request for Next Generation Classic, Inc.’s attorney’s fees is denied. Second, Plaintiff has failed to present sufficient evidence to support her claim for attorney’s fees. “Reasonableness of the fee is determined by looking to a variety of factors: the nature of the litigation, its difficulty, the amount involved, the skill required and the skill employed in handling the litigation, the attention given, the success of the attorney's efforts, his learning, his age, and his experience in the particular type of work demanded; the intricacies and importance of the litigation, the labor and the necessity for skilled legal training and ability in trying the cause, and the time consumed. (<i>Martino v. Denevi</i> (1986) 182 Cal.App.3d 553, 558 (cleaned up).) The party seeking to recover fees for prior counsel’s work on a case has the burden of producing evidence to prove the fees are reasonable. (<i>Ajaxo Inc. v. E*Trade Group Inc.</i> (2005) 135 Cal.App.4th 21, 65.) Plaintiff submitted only her declaration attesting to the amount of fees incurred from her former counsel. However, the declaration does not provide any information with which the Court could determine whether the costs were reasonable. Thus, Plaintiff’s request for her prior counsel’s fees is denied. Finally, Plaintiff seeks costs in her Motion. “A prevailing party who claims costs must serve and file a memorandum of costs within 15

days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (Cal. Rules of Court, rule 3.1700, subd. (a).)

Thus, Plaintiff’s requests for costs are improperly included in this Motion. Therefore, Plaintiff’s request for costs is denied.

2. MOTION FOR RECONSIDERATION

Plaintiff Colleen Sheehan’s Motion for Reconsideration is DENIED.

Plaintiff’s Motion is untimely under Code of Civil Procedure, section 1008(a). “When an application for an order has been made ... any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order ... make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (Code Civ. Proc., § 1008(a).) The challenged interlocutory judgment was entered on 11/24/25. Thus, Plaintiff had until 12/4/25 to file her Motion. She filed this Motion on 12/12/25, beyond the 10 day time limit. Section 1008 is jurisdictional and its requirements apply to all applications. (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 840.) Thus, the Court lacks jurisdiction to consider the Motion because it is untimely under Section 1008(a).

3. MOTION FOR CONTEMPT

Defendant/Cross-Complainant Michael Sheehan’s Motion for Order to Show Cause re: Contempt against Plaintiff/Cross-Defendant Colleen Sheehan is GRANTED.

Defendant Michael request the Court issue and order to show cause “why Plaintiff and Cross-Defendant Colleen Sheehan (“Plaintiff”) should not be held in contempt for violating the Final Judgement entered by this Court on December 3, 2025, following the completion of trial.” Michael claims Plaintiff has no possessory rights in 2247 Meyer Place, Costa Mesa, CA 92627 or the Ferraris Online YouTube channel, however, has continued to exercise control over the property.

Disobedience of any lawful judgment, order or process of the court constitutes contempt of the authority of the court. (Code Civ. Proc., § 1209(a)(5).) “When the contempt is not committed in the immediate view and presence of the court or judge, a warrant of attachment may be issued to bring the person charged to answer, or, without a previous arrest, a warrant of commitment may, upon notice, or upon an order to show cause, be granted; and no warrant

		of commitment can be issued without such previous attachment to answer, or such notice or order to show cause.” (Code Civ. Proc., § 1212.) The substantive issues involved in a contempt proceeding are: (1) rendition of a valid order, (2) knowledge of the order, (3) ability to comply with the order, and (4) willful disobedience. (<i>Wanke, Industrial, Commercial, Residential, Inc. v. Keck</i> (2012) 209 Cal.App.4th 1151, 1168.) The Court finds Michael has presented sufficient evidence that Plaintiff knows of the valid final judgment of this Court, her ability to comply with the judgment finding her to have no interest, possessory or otherwise in 2247 Meyer Place, Costa Mesa, CA 92627 or the Ferraris Online YouTube channel, and has willfully failed to comply with the order. (Leventhal Decl., ¶ 3-8.) The Court sets an Order to Show Cause why Colleen Sheehan should not be held in contempt on the ground she disobeyed this Court’s final judgment issued on December 3, 2025 for 8/4/26 at 9:00 a.m., in Dept.C32. Michael is ordered to personally serve the supporting declaration and the Order to Show Cause on Plaintiff. (<i>Cedars-Sinai Imaging Medical Group v. Superior Court</i> (2000) 83 Cal.App.4th 1281, 1286.) The proof of service must be filed at least 9 court days before the hearing.
7.	SALDIVAR VS. NGUYEN 2022-01257448	MOTION FOR RECONSIDERATION Cross-Complainant Alphonse Nguyen’s Motion for Reconsideration of the Court’s May 5, 2026 Order is DENIED. “When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc., § 1008(a).) Nguyen has failed to identify any new or different fact, circumstance, or law which merits reconsideration of the prior order. Nguyen first claims the Court’s decision to not allow oral argument warrants reconsideration. However, Nguyen fails to provide any authority which supports his contention this constitutes a new or different fact. Nguyen claims there are legal errors in the Court’s ruling, however, this would amount to rearguing the merits of the motions and not presenting new or different facts, circumstances, or